



Notification Waiver Determination

Australian Venue Co – assets of Hervey Bay Hotel & Resort, Pialba, QLD

Acquisition	AVC Operations Pty Limited, a subsidiary of Australian Venue Co. Holdings Limited (Australian Venue Co), applied for a notification waiver in respect of its proposed acquisition of all of the assets of the licensed hotel business trading as the Hervey Bay Hotel & Resort (Hervey Bay Hotel) (including the exclusive right to carry on the business in succession of the vendor) from Herbay Pty Ltd as trustee for The Herbay Trust, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 September 2026

Parties to the Acquisition	Australian Venue Co operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as bars, clubs and licensed restaurants, and hotels/motels with accommodation services. Its venues are individually branded and are mostly located in inner-city and metropolitan areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. Hervey Bay Hotel is a licensed hotel and resort venue located at 249 The Esplanade, Pialba, QLD 4655. The venue is a typical Australian pub/hotel with a public bar, bistro, function and gaming rooms, and an attached bottle shop, with an additional accommodation offering of 26 motel rooms.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: there is limited horizontal overlap between Australian Venue Co and the Hervey Bay Hotel in the supply of dining, functions, gaming and on-premises liquor services at pub-style venues, and no horizontal overlap in the retail supply of takeaway packaged liquor for offsite consumption or in the supply of accommodation services, in Pialba and the surrounding local area

	b. there are alternative suppliers of the relevant goods and services in the local area surrounding the Hervey Bay Hotel. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**